

7-1600 Outdoor Lighting

A. Purpose and Intent

It is the intent of this Section to define practical and effective measures by which the obtrusive aspects of outdoor light use can be minimized while preserving safety, security, and the nighttime use and enjoyment of property. These measures will curtail the degradation of the nighttime visual environment by encouraging lighting practices that direct appropriate amounts of light where and when it is needed, increasing the use of energy-efficient sources, and decreasing the waste of light and the generation of glare resulting from poorly shielded or inappropriately directed lighting fixtures.

B. Applicability

1. New Uses, Buildings and Major Additions or Modifications. For all proposed new land uses, developments, buildings, and structures that require a building permit, or site plan review, all outdoor lighting fixtures shall meet the requirements of this Code.
2. Any new lighting shall meet the requirements of this Section with regard to shielding.
3. If a property or use with nonconforming lighting is abandoned as defined in Section 4-1000, then all outdoor lighting shall be reviewed and brought into compliance with this Code before a new use is approved.
4. Exemptions
 - a. Lighting for public roadways is exempt from the provisions of this Code.
 - b. Lighting in historic districts may be exempted from these regulations
 - c. Seasonal decorations using typical unshielded low-wattage incandescent lamps shall be permitted.

C. Shielding

1. Any lamp installed must be shielded such that the light is projected below the horizontal plane created by the shield.
2. Effective Shielding Standard. All light fixtures shall be installed and maintained in such a manner that the shielding is effective as described in the definition in Article 18 –162A for fully shielded fixtures.
3. Light Trespass Standard. Beyond the shielding requirements of Section C.1, all light fixtures shall be located, aimed or shielded so as to minimize stray light trespassing across property boundaries.

D. Specific Uses.

1. Outdoor Display Lots and Parking Lots.
 - a. Lighting sources shall be mounted no more than 12 feet above finished grade.
 - b. Fully shielded lighting is required.
2. Service Station Canopies.
 - a. All luminaries mounted on or recessed into the lower surface of service station canopies shall be fully shielded and utilize flat lenses.
 - b. Total Under-Canopy Output: The total light output used for illuminating service station canopies, defined as the sum of all under-canopy initial bare-lamp outputs in lumens, shall not exceed 20 lumens per square foot of canopy. All lighting mounted under the canopy, including but not limited to luminaries mounted on the lower surface or recessed into the lower surface of the canopy and any lighting within signage or illuminated panels over the pumps, is to be included toward the total at full initial lumen output.

E. Submission of Plans and Evidence of Compliance

1. The applicant shall submit, as part of the application for a building permit, evidence that the proposed work will comply with this Code. The submission shall contain but shall not necessarily be limited to the following:
 - a. plans indicating the location on the premises of all lighting fixtures, both proposed and any already existing on the site;
 - b. description of all lighting fixtures, both proposed and existing. The description may include, but is not limited to, catalog cut sheets and illustrations by manufacturers;
 - c. photometric data, such as that furnished by manufacturers, or similar showing the angle of cut off of light emissions.

F. Approved Materials and Methods of Construction or Installation/Operation

1. The provisions of this Code are not intended to prevent the use of any design, material, or method of installation or operation not specifically prescribed by this Code, provided any such alternate has been approved by the Community Planning & Permitting Department. The alternative may be approved with a finding that it:
 - a. provides at least approximate equivalence to those applicable specific requirements of this Code
 - b. is otherwise satisfactory and complies with the intent of this Code.

G. Prohibitions.

1. The use of laser source light or any similar high intensity light for outdoor advertising or entertainment, when projected above the horizontal, is prohibited.
2. The private operation of searchlights is prohibited.

H. Temporary Exemption.

1. Any person may submit a request to the Community Planning & Permitting Department for a temporary exemption. The request shall contain the following information:
 - a. specific Code exemption(s) requested;
 - b. duration of requested exemption(s);
 - c. proposed location on premises of the proposed light fixture(s);
 - d. purpose of proposed lighting;
 - e. information for each fixture as required in Section E.1;
 - f. previous temporary exemptions, if any, and addresses of premises thereunder;

I. Other Exemptions

1. Nonconformance
 - a. All other outdoor light fixtures lawfully installed prior to and operable on August 5, 2003 of this amendment are exempt from the requirements of Article 7-1600. There shall be no change requiring the issuance of a building permit without conforming to all applicable requirements of this Code.
 - b. Emergency lighting used by police, firefighting, or medical personnel, or at their direction, is exempt from all requirements of this code for as long as the emergency exists.
 - c. Swimming Pool and Fountain Lighting. Underwater lighting used for the illumination of swimming pools and fountains is exempt from the lamp type and shielding standards of Section C, though it must conform to all other provisions of this code.